

HOUSE No. 2249

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting neighboring communities from deleterious construction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 2249

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 2249) of Bruce J. Ayers relative to certain construction projects occurring in municipalities within 1,500 feet of a border of another municipality. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2020 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting neighboring communities from deleterious construction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40 of the General Laws, as appearing in the 2016 Official Edition, is hereby
2 amended by adding the following section:-

3 Section 70. Any major construction project occurring in a municipality within 1,500 feet
4 of another municipalities' border shall contain an area of land between the 2 municipalities to
5 provide for a buffer zone to prevent harm to a neighboring municipality from another
6 municipalities' allowance of major construction. For the purposes of this section the term major
7 construction project shall mean any public or private construction totaling in excess of
8 \$5,000,000, road or highway construction or erection of any bridge over navigable or tidal
9 waters.

10 The buffer zone shall include, but not be limited to: parks, gardens, trails, wetlands open
11 space, or a specific protected area, where restrictions on resource use and development measures
12 are undertaken in order to enhance the open space or conservation use of the protected area.